

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Brokate	Team: Team # 3	CCRB Case #: 200904711	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 03/26/2009 10:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/26/2010	Precinct: 44
Date/Time CV Reported Fri, 03/27/2009 7:34 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/27/2009 7:34 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Johnny Orellana	00000	920679	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Johnny Orellana	Abuse: Lt. Johnny Orellana entered and searched § 87(2)(b) in the Bronx.	A . Complainant Uncooperative

Synopsis

The following complaint was filed by § 87(2)(b) on March 27, 2009 via the CCRB Call Processing System. § 87(2)(b) alleged that on March 26, 2009, a friend of hers, § 87(2)(b), dropped off her children between 10:45 PM and 11:30 PM at § 87(2)(b) apartment, which is located at § 87(2)(b) in the Bronx, prior to leaving for work, after which she was arrested for § 87(2)(b). Sometime thereafter, an officer, PO1 (Hispanic/white male; 5'9"; 170 to 190 pounds; no glasses/facial hair) knocked on § 87(2)(b)'s door. After § 87(2)(b) opened her door, PO1 asked her if anyone had just left her apartment; § 87(2)(b) stated that, yes, § 87(2)(b) had recently left her children. PO1 then asked § 87(2)(b) if there was anyone else in the apartment, after which § 87(2)(b) replied that there were four children and two other adults, her sister, § 87(2)(b) and her brother-in-law, whom § 87(2)(b) only knows as § 87(2)(b). PO1 then stated that he smelled marijuana. § 87(2)(b) told PO1 that no one had been smoking marijuana. PO1 then entered § 87(2)(b)'s apartment and looked towards the kitchen, after which § 87(2)(b) mentioned to the officer that he did not have a warrant to enter her home. PO1 replied, "I don't care; I'm the police." § 87(2)(b) subsequently asked for the officer's name and badge number, which he provided as "Orellana", #22679. A search of CTS showed a Lt. Johnny Orellana, assigned to the 44th Precinct. The entire incident with Lt. Orellana, who spoke with § 87(2)(b) in both Spanish and English, lasted about ten minutes. § 87(2)(b) stated that there were additional officers standing in the hallway outside her apartment, but she was unable to provide any details about them; no other officers entered her apartment or were otherwise involved in the incident. § 87(2)(g)

On April 15, 2009, § 87(2)(b) was sent a "please call" letter. Because § 87(2)(b) speaks Spanish, Investigator Rivera placed the initial phone call to § 87(2)(b) on April 20, 2009, at which time § 87(2)(b) scheduled an appointment for herself on April 23, 2009. On April 23, 2009, § 87(2)(b) missed her scheduled appointment at the CCRB without calling beforehand to cancel or reschedule. On April 24, 2009, § 87(2)(b) was sent a "missed appointment" letter. On May 1, 2009, Investigator Rivera spoke to § 87(2)(b) at which time she stated that she was not able to reschedule another appointment at that time and would call back, which § 87(2)(b) failed to do. On May 7, 2009, Investigator Rivera left a voicemail message for § 87(2)(b).

To date, § 87(2)(b) and § 87(2)(b) have failed to contact the CCRB. Therefore, it is recommended that this case be closed as **complainant uncooperative**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: